

**IN THE HIGH COURT OF JUDICATURE AT PATNA
CRIMINAL MISCELLANEOUS No 8546 of 2020**

Arising Out of PS. Case No.-314 Year-2019 Thana- BIHARIGANJ District- Madhepura

PAWAN KUMAR S/o Dashrath Yadav Resident of Village- Parwa Navtol,
P.S.- Murliganj, Distt- Madhepura.

... .. Petitioner/s

Versus

THE STATE OF BIHAR

... .. Opposite Party/s

Appearance :

For the Petitioner/s : Mr.Uday Chand Prasad

For the Opposite Party/s : Ms.Renu Kumari

CORAM: HONOURABLE MR JUSTICE MADHURESH PRASAD

ORAL ORDER

2 03-03-2020 Heard learned counsel for the petitioner and the
learned APP for the State.

Petitioner apprehends arrest in connection with
Bihariganj Police Station (for brevity, PS) Case No 314 of 2019
arising out of Excise Act Case No 314 of 2019 instituted for the
offence punishable under Section(s) 30 (a) of Bihar Prohibition
and Excise Act, 2016.

On a tip off regarding transportation of illicit
liquor, the police officials have proceeded for investigation.
Two vehicles have been stopped. Four persons have been
arrested from the two vehicles and 45 liters, 72 liters, 7.5 liters
and 34.56 liters of different brand have been recovered from
these four persons. The petitioner's implication is by these



persons that he has fled away from the vehicle in question. It is submitted by the learned counsel for the petitioner that even as per allegation, the petitioner was not apprehended at the spot. There is no recovery from him and merely because of his name being taken by the arrested persons, he is apprehending his arrest. False implication of the petitioner cannot be ruled out. In the circumstances, no offence whatsoever would be made out under the Bihar Prohibition and Excise Act, 2016

The learned APP for the State has opposed the prayer for anticipatory bail referring to the provisions contained in Section 76 (2) of the Bihar Prohibition and Excise Act and submitted that pre-arrest bail would not be maintainable.

This Court is conscious to the decision of the Full Bench in the case of *Ram Vinay Yadav -Versus- State of Bihar* reported in 2019 (2) PLJR 1089. Having regard to the law laid down in the said judgment and the submissions advanced on behalf of the petitioner, this Court, for the limited purpose of grant of anticipatory bail, is inclined to accept the submissions of learned counsel for the petitioner.

Considering the aforesaid facts, prayer of petitioner for grant of anticipatory bail is allowed. In the event of surrender/arrest of the petitioner, named above, before the Court



below, within four (04) weeks from today, he shall be released on bail on his furnishing bonds of Rs 10,000/- (Rupees Ten Thousand) with two sureties of the like amount each to the satisfaction of Additional Sessions Judge II, Madhepura in connection with Bihariganj PS Case No 314 of 2019, Excise Act Case No 1050 of 2019 subject to the conditions as laid down under Section 438 (2) of Criminal Procedure Code and also the following conditions:-

(i) That one of the bailors will be a close relative of the petitioner who will give an affidavit giving genealogy as to how he is related with the petitioner. The bailor will also undertake to inform the Court if there is any change in the address of the petitioner.

(ii) That the petitioner will be well represented on each date and if he fails to do so on two consecutive dates, his bail bond will be liable to be cancelled.

(Madhuresh Prasad, J)

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